

HOUSE No. 2003

The Commonwealth of Massachusetts

PRESENTED BY:

Alyson M. Sullivan-Almeida

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to possession of a dangerous weapon.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>1/16/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/30/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>4/30/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>4/30/2025</i>

HOUSE No. 2003

By Representative Sullivan-Almeida of Abington, a petition (accompanied by bill, House, No. 2003) of Alyson M. Sullivan-Almeida relative to penalties for possession of dangerous weapons by persons in the custody of certain correctional facilities. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1772 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to possession of a dangerous weapon.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 127 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 38B the following section:-

3 Section 38B ½. (a) For purposes of this section, the word “dangerous weapon” shall
4 include any weapon or object, including an object that is custom or homemade, which is
5 designed or intended to be used as a weapon.

6 (b) Any person in the custody of a correctional facility, including any jail, house of
7 correction, trial court detention facility or state prison, who possesses a dangerous weapon shall
8 be punished by imprisonment in the state prison for not more than 10 years or in the house of
9 correction for not more than 2 ½ years, or by a fine of not more than \$5,000, or by both such fine

- 10 and imprisonment. Such sentence shall begin from and after all sentences currently outstanding
- 11 and unserved at the time the person commits the violation of this section.